

25STCV06699 25STCV06699

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-06-25

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C407%2C06%2F25%2F2026

Source SHA-256: a1197cef111db91761bdcf1dc6cfab47f9b97fdb325b35d560e210e424f5501

Case Number: 25STCV06699 Hearing Date: June 25, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: June 25, 2026 TRIAL DATE: N/A

CASE: Mercury Insurance Company v. Oscar Fonseca, et al.

CASE NO.: 25STCV06699

APPLICATION

FOR DEFAULT JUDGMENT

MOVING PARTY: Plaintiff

Mercury Insurance Company

RESPONDING PARTY: N/A

On March 10, 2025, Plaintiff, Mercury Insurance Company, filed this insurance subrogation action against Defendants, Oscar Fonseca ("Fonseca"), Maria Reyes Rodriguez ("Rodriguez"), and Does 1 through 10. According to Plaintiff, on August 5, 2022, Fonseca operated a vehicle in a negligent manner which collided with Plaintiff's insured's vehicle, causing damage.¿ The vehicle was owned by Rodriguez. As a result of Defendant's negligence, Plaintiff paid to its insured \$47,282.53.¿

On January 21, 2026, Defendants were served with the Summons, Complaint, and Statement of Damages by substituted service.

On March 18,
2026, default was entered against Defendants.

On June 16,
2026, Does 1 through 10 were dismissed from this action.

Plaintiff now
requests default judgment against Defendants in the sum of \$51,034.53,
consisting of \$47,282.53 (demand of complaint), \$2,998.88 in interest, and \$753.00
in costs.

Upon review, request for court judgment cannot be
approved. Defendants submit two proposed
judgments. One proposed judgment
requests entry of judgment of \$51,034.41 against Fonseca. The other proposed judgment requests entry
judgment of \$22,021.49 against Rodriguez.

Plaintiff does not provide any explanation why the court should enter
two separate judgments. To the extent
the proposed judgment against Rodriguez is requested pursuant to the limitations
of Vehicle Code sections 17151 and 17150, Plaintiff is directed to file one
proposed judgment against both Defendants which indicates that liability
against Rodriguez is enforceable up to the limits of those statutory provisions
(i.e., \$15,000 for death or injury of one person, \$5,000 for property damages,
etc.)

Accordingly, the request for default judgment against Defendants
is DENIED WITHOUT PREJUDICE. Plaintiff is ordered to serve and file
another default judgment package consistent with this order forthwith.

The clerk
of the court to give notice to Plaintiff.

Dated: June 25, 2026

Brock T. Hammond

Judge of the
Superior Court